

From: Sneller, Cindy (EGLE)
Sent: 1/25/2021 11:14:10 AM
To: "Doug Langworthy (dlangworthy@cadillac-MI.net)" <dlangworthy@cadillac-MI.net>
Subject: CPLR Notification examples
Attachments: Example-CPLR Notification Letter-06S06W04-SF01.docx, Example-CPLR site - exceeds Copper.pdf, Example-CPLR Site Notification Ltr - RH01.pdf

Hi Doug – Attached you will find 3 different CPLR notification letters for sites. There are many ways to write them up, but the main thing is the required wording (*underlined*) that must be included in the notification, according to Part 24, Rule 323.2408 (3)(a). You will notice this in the 3 attached.

(3) A person who applies biosolids to the land shall obtain information needed to comply with all of the following requirements:

- a. Before a person applies bulk biosolids subject to the cumulative pollutant loading rates in R 323.2409(5)(b) to the land, the person shall contact the state to determine whether bulk biosolids subject to the cumulative pollutant loading rates in R 323.2409(5)(b) have been applied to the site since July 20, 1993, except when the land has been owned by the generator since July 20, 1993, and the cumulative loading rate is known. The notification requirements in subrule (4) of this rule still apply.

Some facilities will add the metal exceeded and/or even provide the analytical report with the notification.

If you have questions, or want me to look it over before you finalize a template, let me know.

Cindy

Cindy A. Sneller, Senior EQA
EGLE/WRD/Biosolids - Covering the west side of the Lower Peninsula
snellerc@michigan.gov
616-401-2471

Grand Rapids District Office
State Office Building
350 Ottawa Ave., NW
Grand Rapids, MI 49503
www.michigan.gov/egle



ATTACHMENT NAME:

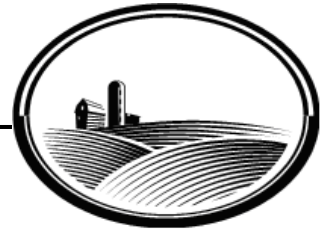
Example-CPLR Notification Letter-06S06W04-SF01.docx

ATTACHMENT TYPE:

Microsoft Office 12+, Office Open XML (OOXML/OpenXML): document (DOCX)

BioTech Agronomics, Inc.

Residual Management Company



R323.2408 (3) (a) CPLR Compliance Certification

CPLR Certification

(3) A person who applies biosolids to the land shall obtain information needed to comply with all of the following requirements:

(a) Before a person applies bulk biosolids subject to the cumulative pollutant loading rates in R323.2409 (5) (b) to the land, the person shall contact the state to determine whether bulk biosolids subject to the cumulative pollutant loading rates in R323.2409 (5) (b) have been applied to the site since July 20, 1993, except when the land has been owned by the generator since July 20, 1993, and the cumulative pollutant loading rate is known. The notification requirements in sub-rule (4) still apply.

(b) In accordance with the above referenced requirements, Biotech agronomics is hereby notifying the MDEQ of our intent to apply bulk sewage biosolids subject to the cumulative loading rates in rates in R323.2409 and 503.13 to the land application site listed below.

MDEQ Site #: 06S06W04-SF01

Property Owner: Sexton Farms
Farmer: Sexton Farms

Section: 04
County: Branch
Township: Coldwater

Acreage: 52
Latitude: N 42 59 02
Longitude: W 85 00 14

It is not possible that any other entity has legally applied to these sites after July 20, 1993 due to the existence of the following conditions:

1. Biotech agronomics, is the current sole land applier, contracted to apply the generators biosolids to the respective application site listed.
2. Biotech agronomics, holds the farmer and landowner agreement for this site.

Project: Coldwater WWTP

Zach Gearn
Land Manager
Biotech agronomics
(616) 835-0068
zgearns@biotechag.com

Date: 12/05/2018

ATTACHMENT NAME:

Example-CPLR site - exceeds Copper.pdf

ATTACHMENT TYPE:

Adobe Portable Document Format (PDF) compound image



December 13, 2017

Cindy Sneller
MDEQ Water Resources Div
350 Ottawa Ave, NW
Grand Rapids, MI 49503

Mr. John Colletti
USEPA Region 5 5WOP-16J
77 West Jackson Blvd.
Chicago, IL 60604-3590

RE: R 323.2408 (a) and 40 CFR Part 503 General Requirements 503.12(e)(2)(i) and 503.12(j)

In accordance with the above referenced requirements, Michigan AgriBusiness Solutions (EPA Michigan ID #MIL000597) is hereby notifying MDEQ of our intent to apply bulk sewage biosolids subject to the cumulative loading rates in R323.2409 (b) and 503.13(b)(2) to the land application sites listed below:

<u>State</u>	<u>Generator</u>	<u>Site Designation</u>	<u>Location (Latitude and Longitude)</u>
Michigan	City of Portland WWTP	05N-04W-26-BR01	42:47:36 N – 84:45:05 W

It is not possible that any other entity has legally applied to these sites after 12/13/17 due to the existence of the following conditions:

1. Michigan AgriBusiness Solutions is the current sole land applier, contracted to apply the generator's biosolids to the respective application sites listed.
2. Michigan AgriBusiness Solutions or Synagro has held the farmer and landowner agreement for this site since it was permitted over 10 years ago for the Lansing WWTP. It was then transferred to Portland on 7/27/09. It was transferred back to Lansing on 8/25/17 and then back to Portland on 12/13/17.

Therefore, this notice of our intent to apply to the previously listed site also serves to satisfy our requirement under R 323.2408 (a) and 503.12(e)(2)(i) to contact you regarding previous applications of bulk biosolids to these sites anytime after July 20, 1993. Michigan AgriBusiness Solutions will contact you for any sites where there is a change in status that would allow another entity to apply to the sites listed in this notice.

If you have any questions about this notice or require any additional information to comply with the notification requirements, please contact me at (517) 648-9043.

Sincerely,

Mike Sheridan
Technical Services Specialist
Michigan AgriBusiness Solutions

Cc: City of Portland WWTP
Michigan AgriBusiness Solutions

ATTACHMENT NAME:

Example-CPLR Site Notification Ltr - RH01.pdf

ATTACHMENT TYPE:

Adobe Portable Document Format (PDF) compound image



September 2, 2015

Greg Merricle
P.O. Box 30242
525 W. Allegan
Lansing, MI 48909

Mr. John Colletti
USEPA Region 5 5WOP-16J
77 West Jackson Blvd.
Chicago, IL 60604-3590

RE: R 323.2408 (a) and 40 CFR Part 503 General Requirements 503.12(e)(2)(i) and 503.12(j)

In accordance with the above referenced requirements, Synagro Central (EPA Michigan ID #MIL000597) is hereby notifying MDEQ of our intent to apply bulk sewage biosolids subject to the cumulative loading rates in R323.2409 (b) and 503.13(b)(2) to the land application sites listed below:

<u>State</u>	<u>Generator</u>	<u>Site Designation</u>	<u>Location (Latitude and Longitude)</u>
Michigan	City of Portland WWTP	06N-06W-35-RH01	42:51:54 N – 84:59:02 W

It is not possible that any other entity has legally applied to these sites after 9/2/2015 due to the existence of the following conditions:

1. Synagro Central, LLC is the current sole land applier, contracted to apply the generator's biosolids to the respective application sites listed.
2. Synagro Central, LLC holds the farmer and landowner agreement for this site.

Therefore, this notice of our intent to apply to the previously listed site also serves to satisfy our requirement under R 323.2408 (a) and 503.12(e)(2)(i) to contact you regarding previous applications of bulk biosolids to these sites anytime after July 20, 1993. Synagro Central, LLC will contact you for any sites where there is a change in status that would allow another entity to apply to the sites listed in this notice.

If you have any questions about this notice or require any additional information to comply with the notification requirements, please contact me at (269) 254-7491.

Sincerely,

Tyler Hoopes
Technical Services Specialist
Synagro Central, LLC

Cc: City of Portland WWTP
Jeff Faust- Synagro Central, LLC.